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No. 18–8546. *MURRAY v. FLORIDA*. Sup. Ct. Fla. Certiorari denied. Reported below: 262 So. 3d 26.

No. 18–8547. *BIGGS v. WASHINGTON*. Ct. App. Wash. Certiorari denied. Reported below: 3 Wash. App. 2d 1017.

No. 18–8550. *FLOWERS v. URIARTE ET AL.* Sup. Ct. Fla. Certiorari denied.

No. 18–8551. *IBEABUCHI v. ARIZONA*. Ct. App. Ariz. Certiorari denied.

No. 18–8552. *GAINES v. BUSNARDO ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 735 Fed. Appx. 799.

No. 18–8554. *HETTINGA v. LOUMENA*. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 18–8555. *FLOYD v. JOHNSON ET AL.* C. A. 5th Cir. Certiorari denied.

No. 18–8557. *RUIZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–8562. *TICE v. DENNIS*. C. A. 4th Cir. Certiorari denied. Reported below: 733 Fed. Appx. 114.

No. 18–8563. *GRAYEY v. FILLIYAW, WARDEN, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 737 Fed. Appx. 215.

No. 18–8565. *JACKSON v. TEXAS*. Ct. App. Tex., 6th Dist. Certiorari denied. Reported below: 487 S. W. 3d 648.

No. 18–8569. *BONNELL v. OHIO*. Sup. Ct. Ohio. Certiorari denied. Reported below: 155 Ohio St. 3d 176, 2018-Ohio-4069, 119 N. E. 3d 1285.

No. 18–8572. *JONES v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 262 So. 3d 708.

No. 18–8573. *ATTERBERRY v. VARGA, WARDEN*. C. A. 7th Cir. Certiorari denied.

No. 18–8578. *WILLIAMS v. ILLINOIS*. App. Ct. Ill., 3d Dist. Certiorari denied. Reported below: 2018 IL App (3d) 160556–U.

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No. 18–8588. *ROSSY v. LUPKIN ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–8595. *WALLACE v. LOUISIANA DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONS.* Sup. Ct. La. Certiorari denied. Reported below: 2018–0047 (La. 1/8/19), 260 So. 3d 588.

No. 18–8598. *MAGANA v. WELLS FARGO BANK, N. A., AS TRUSTEE FOR THE BENEFIT OF CERTIFICATE HOLDERS OF ASSET BACKED PASS THROUGH CERTIFICATE SERIES 2004–MCW, ET AL.* C. A. 2d Cir. Certiorari denied.

No. 18–8605. *SWECKER ET UX. v. DEPARTMENT OF AGRICULTURE ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 349.

No. 18–8621. *INGRAM v. PRELESNIK, WARDEN.* C. A. 6th Cir. Certiorari denied. Reported below: 730 Fed. Appx. 304.

No. 18–8663. *MALLORY v. BARR, ATTORNEY GENERAL.* C. A. 6th Cir. Certiorari denied.

No. 18–8667. *ANSON v. UNITED STATES.* C. A. 2d Cir. Certiorari denied.

No. 18–8701. *FRANKLIN v. FLORIDA.* Sup. Ct. Fla. Certiorari denied. Reported below: 258 So. 3d 1239.

No. 18–8732. *MILLER v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS.* C. A. 11th Cir. Certiorari denied.

No. 18–8749. *BLANKS v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 278.

No. 18–8750. *CAMPBELL v. UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF ILLINOIS.* C. A. 7th Cir. Certiorari denied.

No. 18–8758. *GASTON v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 576.

No. 18–8760. *JONES v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 18–8769. *RIOS-RIVERA v. UNITED STATES.* C. A. 1st Cir. Certiorari denied. Reported below: 913 F. 3d 38.

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No. 18–8791. *BISSONETTE v. DOOLEY, WARDEN, ET AL.* C. A. 8th Cir. Certiorari denied.

No. 18–8793. *BURSTEIN v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 893.

No. 18–8794. *BALL v. UNITED STATES.* C. A. 8th Cir. Certiorari denied.

No. 18–8795. *ARMENDARIZ-CHAVEZ v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 266.

No. 18–8796. *COPELAND v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 791.

No. 18–8797. *LOPEZ-ZUNIGA v. UNITED STATES.* C. A. 8th Cir. Certiorari denied. Reported below: 909 F.3d 906.

No. 18–8799. *LOCKWOOD v. UNITED STATES.* C. A. 9th Cir. Certiorari denied.

No. 18–8807. *QUINTERO-CORRAL v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 945.

No. 18–8811. *KING v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 755 Fed. Appx. 859.

No. 18–8817. *CLARK v. UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF NEW YORK.* C. A. 2d Cir. Certiorari denied.

No. 18–8819. *REVELES-SANTANA v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 996.

No. 18–8827. *MC SHAN v. UNITED STATES.* C. A. 6th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 454.

No. 18–8828. *OVERBY v. PENNSYLVANIA* (two judgments). Super. Ct. Pa. Reported below: 185 A.3d 1142 (both judgments). Certiorari denied.

No. 18–8832. *ANNAMALAI v. HARMON, WARDEN.* C. A. 11th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 843.

No. 18–8846. *LOPEZ CUELLAR v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 274.

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No. 18–8847. *BOCANEGRA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 998.

No. 18–8854. *ZINNEL v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 725 Fed. Appx. 453.

No. 18–8860. *CLUM v. BEASLEY, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–8866. *BRAKEALL v. DOOLEY, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–8869. *DAVENPORT, AKA FLAMA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 476.

No. 18–8870. *TAYLOR v. JONES*. C. A. 5th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 305.

No. 18–8873. *THOMAS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 161.

No. 18–8874. *WHITE, AKA BRAITHWAITE, AKA VALENTINE, AKA BROWN v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 748 Fed. Appx. 446.

No. 18–8879. *AROJOJOYE v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 461.

No. 18–8882. *DONALDSON v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 18–8889. *FLANDERS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–8895. *WATKINS v. MASSACHUSETTS*. App. Ct. Mass. Certiorari denied. Reported below: 93 Mass. App. 1105, 103 N. E. 3d 770.

No. 18–8896. *VOLIS v. HOUSING AUTHORITY OF THE CITY OF LOS ANGELES ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 430.

No. 18–8909. *GENTLES v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 18–8910. *FISHER v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 77.

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No. 18–8912. *FLORES v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 18–8913. *AGUILERA-ALVAREZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 975.

No. 18–8915. *ZEPEDA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 18–8917. *AGUILAR v. FORD, ATTORNEY GENERAL OF NEVADA, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–8924. *WEAVER v. BOWERSOX, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–8928. *GUILLEN v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 755 Fed. Appx. 643.

No. 18–8931. *COLEMAN v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 748 Fed. Appx. 403.

No. 18–8932. *SANDERS v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 909 F. 3d 895.

No. 18–8935. *MISERENDINO v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 949.

No. 18–8940. *CHI v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 407.

No. 18–8943. *CONCEPCION v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 904.

No. 18–8948. *MORALES-DEJESUS v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 896 F. 3d 122.

No. 18–8949. *MUHAMMAD v. TAYLOR, WARDEN*. C. A. 11th Cir. Certiorari denied.

No. 18–8952. *MURPHY v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 737 Fed. Appx. 175.

No. 18–8956. *JUCUTAN v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 691.

No. 18–8957. *GOSS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 620.

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No. 18–8961. *THOMAS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 18–8964. *MIRANDA-MANUEL v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 613.

No. 18–8965. *OLLA v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 168.

No. 18–8968. *MATHIS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–8978. *REID v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 850.

No. 18–8980. *LOUIS v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 596 Fed. Appx. 167.

No. 18–8983. *EDWARDS v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 905 F. 3d 1026.

No. 18–8985. *JOHNSON v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 916 F. 3d 701.

No. 18–8995. *ANDERSON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 732 Fed. Appx. 217.

No. 18–8996. *DYAB v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 18–8997. *WILLIAMS v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 263 So. 3d 34.

No. 18–8998. *GARCIA v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 761 Fed. Appx. 815.

No. 18–8999. *HILLSTROM v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 836.

No. 18–9003. *BROWN v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 291.

No. 18–9006. *BOLES v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 914 F. 3d 95.

No. 18–9010. *MAYOKOK v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 441.

No. 18–9020. *MARSHALL v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 533.

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No. 18–9026. *MELITON-SALTO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 525.

No. 18–9027. *NIELSEN v. KELLY, SUPERINTENDENT, OREGON STATE PENITENTIARY*. C. A. 9th Cir. Certiorari denied.

No. 18–9028. *REED v. FLOOD, ACTING WARDEN, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 192.

No. 18–9056. *FOX v. FLORIDA BAR*. Sup. Ct. Fla. Certiorari denied.

No. 18–658. *DOE ET AL. v. BOYERTOWN AREA SCHOOL DISTRICT ET AL.* C. A. 3d Cir. Motion of Ryan T. Anderson for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 897 F. 3d 518.

No. 18–1206. *LIKE ET AL. v. TRANSCONTINENTAL GAS PIPE LINE CO., LLC*. C. A. 3d Cir. Motion of Owners’ Counsel of America et al. for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 907 F. 3d 725.

No. 18–1264. *FLESHMAN v. VOLKSWAGEN, AG, ET AL.* C. A. 9th Cir. Certiorari denied. JUSTICE BREYER took no part in the consideration or decision of this petition. Reported below: 895 F. 3d 597.

No. 18–8855. *HICKS v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 911 F. 3d 623.

Rehearing Denied

No. 18–867. *JACKSON ET AL. v. JACKSON*, 586 U. S. 1223;

No. 18–965. *SULLIVAN v. PUGH ET UX.*, 587 U. S. 918;

No. 18–7433. *ARDANEH v. MASSACHUSETTS ET AL.*, 586 U. S. 1232;

No. 18–7437. *ANIMASHAUN v. SCHMIDT ET AL.*, 586 U. S. 1232;

No. 18–7513. *COBAS v. LINDSEY, WARDEN*, 586 U. S. 1251;

No. 18–7701. *SCHNEIDER v. BANK OF AMERICA, N. A., ET AL.*, 587 U. S. 923;

No. 18–7766. *REEDER v. REYNOLDS, WARDEN*, 586 U. S. 1213;

No. 18–7856. *IN RE ALEXANDER*, 586 U. S. 1207;

No. 18–7865. *DROZDOVSKA v. SEMINOLE COUNTY, FLORIDA*, 587 U. S. 944; and

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No. 18–7970. CALDERON-LOPEZ *v.* BERRYHILL, ACTING COMMISSIONER OF SOCIAL SECURITY, ET AL., 587 U. S. 946. Petitions for rehearing denied.

MAY 30, 2019

Miscellaneous Order

No. 18A1238. PRICE *v.* DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS, ET AL. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Applications for leave to file application for stay and response under seal with redacted copies for the public record granted.

JUSTICE BREYER, with whom JUSTICE GINSBURG joins, and with whom JUSTICE SOTOMAYOR and JUSTICE KAGAN join as to all but Part II, dissenting.

Christopher Lee Price seeks to be executed by nitrogen hypoxia rather than Alabama’s current lethal injection protocol. He claims that executing him by lethal injection will violate his Eighth Amendment right not to be subjected to cruel and unusual punishment. A trial on this claim is scheduled to begin on June 10—only 11 days from today. He has asked this Court to temporarily stay his execution to allow the trial to proceed. I would grant his application.

I

As I explained the last time this case was before us, the Court of Appeals for the Eleventh Circuit has held that nitrogen hypoxia is an available, feasible, and readily implemented alternative in Alabama. See *Dunn v. Price*, 587 U. S. 929, 930 (2019) (opinion dissenting from grant of application to vacate stay); see also *Price v. Commissioner, Dept. of Corrections*, 920 F. 3d 1317, 1326–1329 (CA11 2019), cert. denied, 587 U. S. 934 (2019). That holding is the law of the case. And although the State previously disputed whether nitrogen hypoxia would be less painful than lethal injection, it appears that the State no longer does so. The parties have conducted discovery in the weeks since our last decision, and the State’s expert does not dispute that death by nitrogen hypoxia is virtually painless.

From my perspective, then, there are two remaining questions. The first is whether Price will experience severe pain if executed by lethal injection. Price has presented considerable expert testimony supporting his claim that midazolam, the initial drug in

the protocol, is too weak a sedative to prevent him from feeling the excruciating pain that the remaining two drugs will cause him. See, *e. g.*, 3 Record in No. 19–12026 (CA11), Tab K, pp. 47–60 (testimony of Dr. Zivot). The District Court has agreed to hold a trial to resolve this factual issue, and nothing in this Court’s prior order vacating the stays speaks to this question.

The second question is whether, even if Alabama’s lethal injection protocol will cause Price severe pain and even if a painless alternative method is available, we should nonetheless decline to stay his execution because he failed to select nitrogen hypoxia in time. I recognize that the Court relied on this reasoning in vacating the prior stays of execution. See *Dunn v. Price*, 587 U.S. 929. As I previously stated, however, there is reason to believe that Price had no more than 72 hours to decide whether to die by nitrogen hypoxia. See *id.*, at 932. If that is so, I cannot agree that his failure to make the selection within the 30-day statutory window amounted to unreasonable delay.

Nor do I believe there is any other basis for concluding that Price engaged in undue delay. *Ibid.* (noting the District Court’s finding that Price has been “proceeding as quickly as possible on this issue since before the execution date was set” (emphasis deleted)). I therefore continue to believe that the Court’s prior decision in this case was misguided. For the same reasons I expressed before, I would grant Price’s request for a stay and allow the trial on his Eighth Amendment claim to proceed as planned.

II

By allowing Price’s execution to proceed, the Court leaves an important and potentially meritorious Eighth Amendment claim unresolved, even though a trial to resolve it is just days away. I understand, of course, that the State has a significant interest in carrying out lawfully imposed punishments. But “ensuring that executions run on time” is not the only legal value at stake, *Bucklew v. Precythe*, 587 U.S. 119, 174 (2019) (SOTOMAYOR, J., dissenting), and the Court, I believe, has disregarded important procedural values in this case. This case demonstrates once again the unfortunate manner in which death sentences are often—perhaps inevitably—carried out in this country. We have here an illustration of why I believe, as I have previously argued, that the Court should reconsider the constitutionality of the death penalty in an appropriate case. See *Glossip v. Gross*, 576 U.S. 863, 908 (2015) (dissenting opinion).

JUNE 3, 2019

Certiorari Granted—Vacated and Remanded

No. 18–7187. *WHEELER v. UNITED STATES*. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for the court to consider the First Step Act of 2018, Pub. L. 115–391. Reported below: 742 Fed. Appx. 646.

Certiorari Dismissed

No. 18–8680. *BROOKS v. MCGINLEY, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT COAL TOWNSHIP*. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8.

No. 18–8686. *FRANCISCO VEGA v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8. Reported below: 266 So. 3d 838.

No. 18–9148. *IBEABUCHI v. BLOMO*. Ct. App. Ariz. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8.

Miscellaneous Orders

No. 18A1126 (18–1441). *PRESBYTERIAN CHURCH U.S.A. v. EDWARDS, JUDGE, JEFFERSON CIRCUIT COURT, ET AL.* Sup. Ct. Ky. Application for stay, addressed to JUSTICE GORSUCH and referred to the Court, denied.

No. 18M164. *WHITE v. KEE NGUYEN*. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 65, Orig. *TEXAS v. NEW MEXICO*. The Solicitor General is invited to file a brief in this case expressing the views of the United States with respect to the motion for review of the River Master’s final determination. [For earlier order herein, see, *e. g.*, 586 U. S. 986.]

No. 18–1469. *DEPARTMENT OF HOMELAND SECURITY ET AL. v. CASA DE MARYLAND ET AL.* C. A. 4th Cir. Motion to expedite consideration of petition for writ of certiorari denied.

No. 18–8622. *IN RE GARRETT*. Petition for writ of mandamus denied.

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Certiorari Granted

No. 18–877. ALLEN ET AL. *v.* COOPER, GOVERNOR OF NORTH CAROLINA, ET AL. C. A. 4th Cir. Certiorari granted. Reported below: 895 F. 3d 337.

No. 18–1165. RETIREMENT PLANS COMMITTEE OF IBM ET AL. *v.* JANDER ET AL. C. A. 2d Cir. Certiorari granted. Reported below: 910 F. 3d 620.

No. 18–7739. HOLGUIN-HERNANDEZ *v.* UNITED STATES. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted. Reported below: 746 Fed. Appx. 403.

Certiorari Denied

No. 18–972. MARTOMA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 894 F. 3d 64.

No. 18–1000. AMERICAN FREEDOM DEFENSE INITIATIVE ET AL. *v.* WASHINGTON METROPOLITAN AREA TRANSIT AUTHORITY ET AL. C. A. D. C. Cir. Certiorari denied. Reported below: 901 F. 3d 356.

No. 18–1083. GARDA CL NORTHWEST, INC., FKA AT SYSTEMS, INC. *v.* HILL ET AL. Sup. Ct. Wash. Certiorari denied. Reported below: 191 Wash. 2d 553, 424 P. 3d 207.

No. 18–1094. CANADIAN PACIFIC RAILWAY LTD. ET AL. *v.* WHATLEY, TRUSTEE. C. A. 8th Cir. Certiorari denied. Reported below: 904 F. 3d 614.

No. 18–1252. BILDER *v.* MATHERS ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 802.

No. 18–1253. BURMASTER *v.* SWITZERLAND. C. A. 3d Cir. Certiorari denied.

No. 18–1257. LEE ET AL. *v.* CITY OF LOS ANGELES, CALIFORNIA. C. A. 9th Cir. Certiorari denied. Reported below: 908 F. 3d 1175.

No. 18–1277. SORIN *v.* DEPARTMENT OF JUSTICE. C. A. 2d Cir. Certiorari denied. Reported below: 758 Fed. Appx. 28.

No. 18–1284. WILSON *v.* SUNTRUST BANK ET AL. Ct. App. N. C. Certiorari denied. Reported below: 257 N. C. App. 237, 809 S. E. 2d 286.

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No. 18–1289. *ALLERGAN, INC., ET AL. v. TEVA PHARMACEUTICALS USA, INC., ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 742 Fed. Appx. 511.

No. 18–1290. *MCDONALD v. ARAPAHOE COUNTY, COLORADO.* C. A. 10th Cir. Certiorari denied. Reported below: 755 Fed. Appx. 786.

No. 18–1292. *ROTH v. NASSAU COUNTY, NEW YORK.* C. A. 2d Cir. Certiorari denied. Reported below: 747 Fed. Appx. 891.

No. 18–1326. *SHULTZ ET AL. v. COLE.* C. A. 3d Cir. Certiorari denied. Reported below: 758 Fed. Appx. 252.

No. 18–1342. *UCHEOMUMU v. ATTORNEY GRIEVANCE COMMISSION OF MARYLAND.* Ct. App. Md. Certiorari denied. Reported below: 462 Md. 280, 200 A. 3d 282.

No. 18–1347. *KINNEY v. CLARK.* C. A. 9th Cir. Certiorari denied.

No. 18–1349. *KINNEY v. CLARK.* C. A. 9th Cir. Certiorari denied.

No. 18–1351. *KINNEY v. CLARK.* C. A. 9th Cir. Certiorari denied.

No. 18–1358. *ECHOLS v. LAWTON.* C. A. 11th Cir. Certiorari denied. Reported below: 913 F. 3d 1313.

No. 18–1363. *MORTON v. BANK OF AMERICA, N. A., ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–1364. *MILLER v. OLSEN ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 724 Fed. Appx. 625.

No. 18–1365. *MOGUL MEDIA, INC., ET AL. v. CITY OF NEW YORK, NEW YORK, ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 744 Fed. Appx. 739.

No. 18–1383. *HALE v. UNITED STATES.* C. A. Armed Forces. Certiorari denied. Reported below: 78 M. J. 268.

No. 18–1385. *DELHORNO v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 915 F. 3d 449.

No. 18–6826. *CARO v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 733 Fed. Appx. 651.

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No. 18–7115. *CLARK v. HARMON, WARDEN*. C. A. 5th Cir. Certiorari denied. Reported below: 732 Fed. Appx. 309.

No. 18–7208. *MASLONKA v. NAGY, WARDEN*. C. A. 6th Cir. Certiorari denied. Reported below: 900 F. 3d 269.

No. 18–7639. *WHETSTONE v. UNITED STATES*. C. A. 4th Cir. Certiorari denied.

No. 18–7647. *SMITH ET VIR v. MANASQUAN SAVINGS BANK*. Sup. Ct. N. J. Certiorari denied.

No. 18–7725. *DELEO v. QUINTANA, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7747. *JAE YUNG KIM v. ASUNCION, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–7825. *JENKINS v. OHIO*. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2018-Ohio-2397.

No. 18–7891. *HAYMOND v. HELMAND INVESTMENT, LLC*. Sup. Ct. Va. Certiorari denied.

No. 18–8002. *SMITH v. ARKANSAS*. Sup. Ct. Ark. Certiorari denied. Reported below: 2018 Ark. 277, 555 S. W. 3d 881.

No. 18–8023. *A. R. v. FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES ET AL.* Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 253 So. 3d 1158.

No. 18–8060. *SOLBERG v. FIRST NATIONAL BANK & TRUST CO. OF WILLISTON ET AL.* Sup. Ct. N. D. Certiorari denied. Reported below: 2018 ND 118, 910 N. W. 2d 856.

No. 18–8273. *CUERO PAYAN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 889.

No. 18–8292. *GREER v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 18–8583. *POSTELLE v. CARPENTER, INTERIM WARDEN*. C. A. 10th Cir. Certiorari denied. Reported below: 901 F. 3d 1202.

No. 18–8591. *SALAZAR-HERNANDEZ v. TEXAS*. Ct. App. Tex., 10th Dist. Certiorari denied.

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No. 18–8593. *CALLEN v. ALABAMA*. Ct. Crim. App. Ala. Certiorari denied.

No. 18–8597. *BROWN v. BURTON ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 53.

No. 18–8607. *STERLING v. DWYER*. C. A. 8th Cir. Certiorari denied.

No. 18–8608. *RAMIREZ ET AL. v. COURT OF APPEAL OF CALIFORNIA, THIRD APPELLATE DISTRICT, ET AL.* Sup. Ct. Cal. Certiorari denied.

No. 18–8609. *CLARK v. CARROLL COUNTY SHERIFF’S DEPARTMENT ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 755 Fed. Appx. 968.

No. 18–8610. *SIERRA v. SHAPIRO, ATTORNEY GENERAL OF PENNSYLVANIA, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–8611. *BAILEY v. GASAWAY*. Ct. App. Tex., 3d Dist. Certiorari denied.

No. 18–8612. *JOHNSON v. GONYEA ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 752 Fed. Appx. 14.

No. 18–8613. *MAGEE v. WALT DISNEY CO. ET AL.* C. A. D. C. Cir. Certiorari denied.

No. 18–8618. *HATCH v. WILSON ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 265.

No. 18–8628. *LEE v. UNITED STATES ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 853.

No. 18–8637. *ARLOTTA v. NIAGARA FRONTIER TRANSPORTATION AUTHORITY ET AL.* C. A. 2d Cir. Certiorari denied.

No. 18–8639. *FRANKLIN v. NOGAN, ADMINISTRATOR, EAST JERSEY STATE PRISON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–8640. *HUOT v. MONTANA STATE DEPARTMENT OF CHILD AND FAMILY SERVICES ET AL.* (two judgments). C. A. 9th Cir. Certiorari denied. Reported below: 727 Fed. Appx. 382 (second judgment) and 397 (first judgment).

No. 18–8641. *HOUSTON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION.* C. A. 5th Cir. Certiorari denied.

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No. 18–8643. *FLORES v. DAVIS*, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 734 Fed. Appx. 278.

No. 18–8645. *HARRIS v. DAVIS*, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 18–8648. *BRASSFIELD v. KING*, SUPERINTENDENT, CENTRAL MISSISSIPPI CORRECTIONAL FACILITY. C. A. 5th Cir. Certiorari denied.

No. 18–8651. *BUTRIM v. JOHNSON*, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied.

No. 18–8652. *HARRIS v. NEVADA*. Sup. Ct. Nev. Certiorari denied. Reported below: 134 Nev. 877, 432 P. 3d 207.

No. 18–8653. *WRIGHT v. FLORIDA*. Sup. Ct. Fla. Certiorari denied. Reported below: 256 So. 3d 766.

No. 18–8657. *IBEABUCHI v. MARICOPA COMMISSIONERS*. Ct. App. Ariz. Certiorari denied.

No. 18–8658. *IBEABUCHI v. PENZONE ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–8659. *IBEABUCHI v. WOOD*. C. A. 9th Cir. Certiorari denied.

No. 18–8661. *JACKSON v. MCCAIN*, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 18–8668. *TEAGUE v. NORTH CAROLINA*. Ct. App. N. C. Certiorari denied. Reported below: 259 N. C. App. 904, 817 S. E. 2d 239.

No. 18–8671. *VON FOX v. SOUTH CAROLINA*. Ct. App. S. C. Certiorari denied.

No. 18–8674. *MONTGOMERY v. GARRY LEWIS PROPERTIES*. Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2017–1720 (La. App. 1 Cir. 8/10/18), 256 So. 3d 391.

No. 18–8679. *BELL v. SOUTH CAROLINA*. C. A. 4th Cir. Certiorari denied. Reported below: 724 Fed. Appx. 204.

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No. 18–8681. *CARMOUCHE v. KENT, WARDEN*. C. A. 5th Cir. Certiorari denied.

No. 18–8685. *THOMAS v. JESS, WARDEN*. C. A. 7th Cir. Certiorari denied.

No. 18–8710. *JOHNSON v. SOCIAL SECURITY ADMINISTRATION*. C. A. 4th Cir. Certiorari denied. Reported below: 742 Fed. Appx. 755.

No. 18–8720. *REEP v. DEPARTMENT OF JUSTICE ET AL.* C. A. D. C. Cir. Certiorari denied.

No. 18–8735. *MEYERS v. SWINEY ET AL.* C. A. 4th Cir. Certiorari denied.

No. 18–8745. *PICCONE v. SUPREME COURT OF PENNSYLVANIA*. Sup. Ct. Pa. Certiorari denied.

No. 18–8762. *BROWN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–8764. *DREVALEVA v. DEPARTMENT OF VETERANS AFFAIRS ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–8771. *BARR v. PEARSON ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 909 F. 3d 919.

No. 18–8772. *BENNETT v. HORTON, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–8778. *HUFFMAN v. METZGER, WARDEN, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–8803. *RAMIREZ v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 265 So. 3d 614.

No. 18–8861. *DORSEY v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–8880. *EDWARDS v. SEMPLE, COMMISSIONER, CONNECTICUT DEPARTMENT OF CORRECTION*. C. A. 2d Cir. Certiorari denied.

No. 18–8888. *GOMEZ v. CLARK, ACTING WARDEN*. C. A. 9th Cir. Certiorari denied.

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No. 18–8944. *DOUCET v. LOUISIANA*. Ct. App. La., 5th Cir. Certiorari denied. Reported below: 17–200 (La. App. 5 Cir. 12/27/17), 237 So. 3d 598.

No. 18–8946. *PETERSON v. JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–8963. *COBIAN v. ILLINOIS*. App. Ct. Ill., 3d Dist. Certiorari denied.

No. 18–8971. *LIEPE v. NEW JERSEY*. Super. Ct. N. J., App. Div. Certiorari denied. Reported below: 453 N. J. Super. 126, 180 A. 3d 353.

No. 18–8986. *KELLY v. ARPAIO ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 548.

No. 18–9002. *SMITH v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 386.

No. 18–9008. *UDOH v. MINNESOTA*. Ct. App. Minn. Certiorari denied.

No. 18–9015. *RODRIGO PEREA v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–9017. *MYLES v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–9024. *LITTLES v. FLORIDA*. Sup. Ct. Fla. Certiorari denied.

No. 18–9032. *SLAGER v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 912 F. 3d 224.

No. 18–9037. *BROWN v. NEBRASKA*. Sup. Ct. Neb. Certiorari denied. Reported below: 302 Neb. 53, 921 N. W. 2d 804.

No. 18–9041. *GAKUBA v. ILLINOIS*. App. Ct. Ill., 2d Dist. Certiorari denied. Reported below: 2019 IL App (2d) 170794–U.

No. 18–9042. *HOLDEN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–9044. *RAMSEY v. PREMO, SUPERINTENDENT, OREGON STATE PENITENTIARY*. C. A. 9th Cir. Certiorari denied.

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No. 18–9046. *SHUSTERMAN v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 948.

No. 18–9049. *MADORE v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 18–9050. *KAILIHIWA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 755 Fed. Appx. 689.

No. 18–9053. *HILTON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–9055. *HORNER v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 30.

No. 18–9058. *GARCIA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 724 Fed. Appx. 348.

No. 18–9060. *HARRISON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 765.

No. 18–9063. *JAMES v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 222.

No. 18–9069. *RENGIFO v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 18–9079. *DEDUAL v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 339.

No. 18–9081. *BOOKS v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 914 F. 3d 574.

No. 18–9082. *ANDREWS v. OHIO*. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2018-Ohio-3050.

No. 18–9084. *GLADNEY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 692 Fed. Appx. 185.

No. 18–9085. *HUNTER v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 255.

No. 18–9086. *GALVAN v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 708 Fed. Appx. 207.

No. 18–9091. *LOWRY v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

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No. 18–9092. *LOPEZ-HERNANDEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 455.

No. 18–9104. *ZAMOR v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 960.

No. 18–9105. *GEDDIE v. NORTH CAROLINA*. Ct. App. N. C. Certiorari denied. Reported below: 262 N. C. App. 154, 819 S. E. 2d 416.

No. 18–9106. *WILLIAMS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 278.

No. 18–9109. *NUNEZ-BELEMONTES v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 265.

No. 18–9111. *NOSAIR v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 18–9116. *COTTO v. LASHBROOK, WARDEN*. C. A. 7th Cir. Certiorari denied.

No. 18–9120. *FREY v. ILLINOIS*. App. Ct. Ill., 2d Dist. Certiorari denied. Reported below: 2018 IL App (2d) 150868–U.

No. 18–9121. *GATER v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 18–9124. *MILLER v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 742 Fed. Appx. 886.

No. 18–9131. *CANFIELD v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 758 Fed. Appx. 51.

No. 18–9132. *DICKERSON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 909 F. 3d 118.

No. 18–9133. *BANGURA v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 928.

No. 18–9149. *BROOKINS v. FERGUSON, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT PHOENIX, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–9150. *AYIKA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 18–9151. *SANDLAIN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

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No. 18–929. *MARCUS & MILLICHAP REAL ESTATE INVESTMENT SERVICES, INC., ET AL. v. WEILER*. Ct. App. Cal., 4th App. Dist., Div. 3. Motion of California Building Industry Association et al. for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 22 Cal. App. 5th 970, 232 Cal. Rptr. 3d 155.

No. 18–976. *ASSOCIATION OF AMERICAN RAILROADS v. DEPARTMENT OF TRANSPORTATION ET AL.* C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 896 F. 3d 539.

No. 18–6949. *KLEIN v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR and JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 18–9016. *MILLER v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 754 Fed. Appx. 229.

Rehearing Denied

No. 16–7300. *HARRIS v. HARDEMAN COUNTY, TENNESSEE, ET AL.*, 580 U. S. 1132;

No. 16–9755. *NAVARRO v. UNITED STATES*, 583 U. S. 866;

No. 18–1135. *SHAKARI v. ILLINOIS DEPARTMENT OF FINANCIAL AND PROFESSIONAL REGULATION ET AL.*, 587 U. S. 940;

No. 18–7136. *HANNA v. LEBLANC, SECRETARY, LOUISIANA DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONS, ET AL.*, 586 U. S. 1197;

No. 18–7347. *FREER v. BERRYHILL, ACTING COMMISSIONER OF SOCIAL SECURITY, ET AL.*, 586 U. S. 1210;

No. 18–7383. *FELDMAN v. ADOPTION STAR AGENCY ET AL.*, 586 U. S. 1231;

No. 18–7505. *PINA v. UNITED STATES*, 586 U. S. 1210;

No. 18–7558. *HAWKINS v. FLORIDA*, 586 U. S. 1233;

No. 18–7562. *ISAIAH v. JONES, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*, 586 U. S. 1201;

No. 18–7635. *HALL v. ALABAMA*, 586 U. S. 1234;

No. 18–7791. *SMITH v. CITY OF PRINCETON, TEXAS, ET AL.*, 587 U. S. 942;